

TENTATIVE RULINGS

Date: July 2, 2026

#	Case Name	Tentative
2.	30-2025-01508590 Alvarado vs. Capati	1. Motion for Relief from Waiver of Objections 2. Order to Show Cause Defendant Monique Rosario Nilo Capati (“Defendant”) moves for an order relieving Defendant from any waiver of objections with respect to her untimely responses to Form Interrogatories, Set One, propounded by Plaintiff Araceli Huizar (“Huizar”). Initially, on October 30, 2025, Huizar served Form Interrogatories (Set One), on Defendant. (Decl. of Means para. 3.) After several extensions, responses were due on December 29, 2025. (<i>Id.</i> para. 4-5.) The time to respond expired without Defendant serving responses. (<i>Id.</i> para. 6.) Failing to respond within the time limit waives most objections to the interrogatories (and other forms of discovery), including claims of privilege and “work product” protection. [CCP § 2030.290(a); see <i>Leach v. Sup.Ct. (Markum)</i> (1980) 111 Cal.App.3d 902, 905-906.] However, the court has statutory power to grant relief from such waiver. [CCP § 2030.290(a)] That is, the party seeking belatedly to assert some objection must show that the party has belatedly served responses “in substantial compliance” with that party's duty to respond under CCP § 2030.210(a). [CCP § 2030.290(a)(1) (emphasis added)] The declarations must establish that the party's failure to serve a timely response resulted from “mistake, inadvertence, or excusable neglect.” [CCP § 2030.290(a)(2).] While the Court has broad discretion in this area, not every “excuse” is excusable. [See <i>Mannino v. Sup.Ct. (Southern Calif. Edison Co.)</i> (1983) 142 Cal.App.3d 776, 778-779.] In this instance, Yvette Busby, who is a legal assistant with the law firm representing Defendant, declares, “Among my responsibilities are calendaring deadlines when discovery requests are received, along with any extensions that were requested. Due to my inadvertence and oversight, I did not calendar the new agreed upon deadline of December 29, 2025, for Defendant’s responses to Plaintiff’s discovery requests. Because the deadline was not calendared, no further request for an extension was made before the time to respond expired. This mistake was unintentional and resulted from my oversight.” (Decl. of Busby paras. 3-6.) In addition, attorney Means (counsel for Defendant) declares that on January 5, he requested and received an additional extension until January 12 to serve responses; that on January 12 he communicated that responses would be served shortly; and that responses were served on January 14, 2026. (Decl. of Means, paras. 7-9.) Verifications were served on January 23, 2026. (<i>Id.</i> at para. 11.) Thus, Attorney Means’ declaration as well as Yvette Busby’s declaration provides a reason for the delay and complies with CCP § 2030.290(a)(2).

		Additionally, the responses are substantially compliant. (Decl. of Means, Exh. G.) Huizar contends that, although missing the agreed upon December 29 deadline may have initially been excusable, Defendant was not diligent in providing responses once the error was discovered. However, as Defendant points out, December 29 fell within the holiday period. Huizar’s counsel reached out to Defendant’s counsel on December 30 and December 31, but complains that Huizar’s counsel did not respond until Monday, January 5. Given the New Years holiday and intervening weekend, it was not unreasonable for Defendant’s counsel to respond on January 5. In addition, Defendant’s counsel remained in continuous communication with Huizar’s counsel until the responses and verifications were served approximately two weeks later. Accordingly, the Motion is GRANTED. Moving party to give notice.
5.	30-2024-01442123 Huy vs. Lake Mission Viejo Association	1. Motion-Other (Determining December 12, 2025, Transmission did not Constitute Valid Service) Defendant Park West Landscape Maintenance Inc. (“Park West” or “Defendant”) moves for an order finding that plaintiff Nancy Huy’s (“Plaintiff”) December 12, 2025 transmission of discovery responses did not constitute valid electronic service for purposes of commencing the 45-day period under Code of Civil Procedure sections 2030.300(c) and 2031.310(c) and that Park West’s Motions to Compel filed and served on February 2, 2027 are timely. Park West further moves for an order compelling Plaintiff to serve further verified responses without objections to Special Interrogatories, Set One, Nos 19, 20, 23, 24, 27, 28, 34, 35, 37, 38, 41, 42, 43, and 50. Defendant argues that its discovery motions were timely filed because the 45-day period was not triggered on December 12 due to attorney Ed Sipes being left off of the email serving Plaintiff’s responses. However, service on only one attorney when a party is represented by multiple attorneys constitutes effective service. (See, <i>Adaimy v. Ruhl</i> (2008) 160 Cal.App.4th 583, 588 [holding service on one of the two law firms representing client was sufficient].) Defendant does not dispute that Joshua Watts and Robert Kubler, both of whom appear on the caption of Defendant’s written discovery, were served by email with the responses on December 12. Further, Mr. Kubler confirmed receipt of the responses the same day. Defendant contends that Plaintiff failed to its designated electronic service address but provides no evidence that Plaintiff was requested to include Ed Sipes on any service emails prior to December 12. Notably, Mr. Kubler’s email in response confirming receipt of the responses on December 12 raised no concerns regarding the absence of Ed Sipes on the email chain. Thus, the Court finds Plaintiff’s December 12 service of responses was valid and the deadline for Defendant to file any motions to compel ran from that date. Because the responses were served electronically, Defendant had until January 28, 2026 to file a motion to compel. The motion was not filed until February 2, 2026, five days after the deadline. The 45-day time period within which to make a motion to compel further answers “is mandatory and jurisdictional” and “it renders the court without authority to rule on motions to compel other than to deny them.” (<i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1409-1410.) Because Defendant’s discovery motions were not timely filed, the Court has no authority to rule on them other than to deny them.